

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #8	CCRB Case #: 201806074	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 07/01/2018 7:26 PM	Location of Incident: In front of 421 West 45th Street	Precinct: 18	18 Mo. SOL 1/1/2020	EO SOL 1/1/2020	
Date/Time CV Reported Thu, 07/26/2018 12:35 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/26/2018 12:35 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Paul Robinson	01399	931061	MTN PCT
2. POF Charlene Davis	01407	950279	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A.DTS Paul Robinson	Force: Detective Paul Robinson struck § 87(2)(b) with a baton.	
B.POF Charlene Davis	Force: Police Officer Charlene Davis struck § 87(2)(b) with a baton.	
C.DTS Paul Robinson	Abuse: Detective Paul Robinson forcibly removed § 87(2)(b) to the hospital.	
D.POF Charlene Davis	Abuse: Police Officer Charlene Davis forcibly removed § 87(2)(b) to the hospital.	
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 26, 2018, § 87(2)(b) filed this complaint with the CCRB via the telephone.

On July 1, 2018, at approximately 7:26 p.m., in front of 421 West 45th Street in Manhattan, Det. Paul Robinson and PO Charlene Davis of the 18th Precinct allegedly struck § 87(2)(b) with their batons multiple times on his back, legs and feet (**Allegations A and B: Force, § 87(2)(g)**). § 87(2)(b) was removed to § 87(2)(b) in Manhattan by EMTs § 87(2)(b) and § 87(2)(b) with assistance of the officers (**Allegations C and D: Abuse of Authority, § 87(2)(g)**). § 87(4-b) § 87(2)(g)

There is no video footage associated with the incident. Although both Det. Robinson and PO Davis were assigned body-worn cameras at the time, they did not record the incident.

Findings and Recommendations

Allegation (A) Force: Detective Paul Robinson struck § 87(2)(b) with a baton.

Allegation (B) Force: Police Officer Charlene Davis struck § 87(2)(b) with a baton.

Allegation (C) Abuse of Authority: Detective Paul Robinson forcibly removed § 87(2)(b) to the hospital.

Allegation (D) Abuse of Authority: Police Officer Charlene Davis forcibly removed § 87(2)(b) to the hospital.

Allegation (E) § 87(2)(b)

Allegation (F) § 87(2)(b)

On September 20, 2018, § 87(2)(b) submitted a written notarized statement to the CCRB [BR 03]. He provided additional information regarding the incident during follow-up calls on October 1 and 12, 2018 [BR 04, 05]. § 87(2)(b) alleged that on July 1, 2018, he was walking alone near 421 West 45th Street in Manhattan when he was approached by four or five uniformed officers from behind. The officers started hitting him with batons immediately without issuing him any commands. § 87(2)(b) fell to the ground on his stomach from the first swing to his left shoulder blade. The officers continued hitting him on his back, legs, and feet a few more times. An ambulance arrived and § 87(2)(b) was placed on a stretcher face-down and handcuffed at some point. He was unable to see the officers or the EMTs. § 87(2)(b) was unaware why the ambulance was called and who called it. After being administered a sedative on the scene, § 87(2)(b) lost consciousness. § 87(2)(b) stated that approximately an hour before the incident he had three or four beers and denied being intoxicated or under the influence of any other substances. On the following day, at approximately 2:00 a.m., § 87(2)(b) regained consciousness at § 87(2)(b) in Manhattan. He was informed by the nurse he was “alright” and only had some contusions and bruises. § 87(2)(b) noticed he had bruises to his wrists, back, legs and feet. He was released from the hospital without any paperwork. Either on § 87(2)(b), § 87(2)(b) went to § 87(2)(b) in Manhattan because his right foot was swollen. He was diagnosed with a compound fracture of

that foot. § 87(2)(b) did not take pictures of his injuries and noted he did not have them before the incident.

During her phone statement to the CCRB, civilian witness § 87(2)(b) stated she was walking her dog when she observed an unconscious male, identified via investigation as § 87(2)(b) lying on the § 87(2)(b) § 87(2)(b) in Manhattan [BR 05]. § 87(2)(b) called 911 but did not witness the NYPD response. § 87(2)(b) could not provide any additional details about the condition of the male. § 87(2)(b)'s statement was consistent with the recording of the 911 call she placed that was associated with NYPD Event #§ 87(2)(b) [NYPD 01]. According to the same Event, NYPD traffic agent § 87(2)(b) also called 911 to report a male in his 30s lying unresponsive on the stoop. He was covered in vomit and appeared to be intoxicated. § 87(2)(b) stated she attempted to talk to the male but he was not answering.

In his verified statement at the CCRB, EMT § 87(2)(b) stated he and his partner EMT § 87(2)(b) responded to the location regarding a call requesting medical assistance for an intoxicated male [BR 09]. § 87(2)(b) was lying on the stoop, was incoherent and appeared to be upset. He did not want to go to the hospital and attempted to leave the scene. He was unsuccessful and appeared to be unsteady on his feet. Since § 87(2)(b) was staggering and had an odor of alcohol on his breath, EMT § 87(2)(b) concluded that § 87(2)(b) was intoxicated. EMT § 87(2)(b) and EMT § 87(2)(b) requested police assistance since § 87(2)(b) was refusing to go to the hospital and appeared to be unable to care for himself. When Det. Robinson and PO Davis responded, § 87(2)(b) continued refusing to go to the hospital and the officers handcuffed him. Although EMT § 87(2)(b) noted that § 87(2)(b) was trying to prevent the officers from handcuffing him, he did not recall how specifically nor did he recall what actions the officers took in order to handcuff § 87(2)(b). However, EMT § 87(2)(b) did not observe the officers use any force towards § 87(2)(b) including striking him with batons nor did he recall whether he observed the officers being equipped with batons. EMT § 87(2)(b) did not recall observing any physical injuries to § 87(2)(b) or hearing him complain of any injuries. He would have documented any visible physical injuries or complaints as such. § 87(2)(b) was ultimately placed on a stretcher and transported to Mt. Sinai West Hospital. EMT § 87(2)(b) did not recall whether § 87(2)(b) had to be sedated on the scene.

EMT § 87(2)(b)'s CCRB testimony was largely consistent with that of EMT § 87(2)(b) with the following additions [BR 10]. She recalled observing a few cans of possibly beer next to § 87(2)(b). EMT § 87(2)(b) attempted to establish contact with § 87(2)(b) and he was uncooperative, mumbling and might have pushed her arm away. Based on the above, together with the fact that § 87(2)(b) had alcohol on his breath, EMT § 87(2)(b) concluded he was intoxicated. EMT § 87(2)(b) attempted to sit § 87(2)(b) up but was unable due to his size. EMT § 87(2)(b) did not recall if § 87(2)(b) attempted to stand up or leave on his own. Since § 87(2)(b) was in no condition to make an informed decision on his own due to his state, it would have been against protocol for the EMTs to leave him there and he needed to go to the hospital. Due to the fact that § 87(2)(b) was refusing to go, the EMTs called for police assistance to remove § 87(2)(b). When Det. Robinson and PO Davis arrived, all four of them placed § 87(2)(b) on the stretcher. EMT § 87(2)(b) did not recall whether § 87(2)(b) had to be handcuffed. The officers never struck § 87(2)(b) with their batons and she did not believe that either officer was equipped with one. § 87(2)(b) was not sedated on the scene because the EMTs did not have necessary medicine for that.

When interviewed at the CCRB, Det. Robinson provided similar description of § 87(2)(b) position and behavior as related by the witnesses above [BR 07]. Det. Robinson noted that there was a bottle of alcohol, in the shape of Jägermeister, next to § 87(2)(b). Det. Robinson stated he was familiar with § 87(2)(b) since he normally loiters in that building and disturbs the residents. Det. Robinson responded to prior incidents when § 87(2)(b) had to be removed from the location and was aware that § 87(2)(b) had a record of being violent towards the officers, including one instance where § 87(2)(b) was tasered by officers. After arriving on the scene, Det. Robinson was informed by the EMTs that § 87(2)(b) was intoxicated, appeared to be unable to care for himself and had to go to the hospital. Det. Robinson told § 87(2)(b) to get into the ambulance and § 87(2)(b) told him to “go fuck himself.” Det. Robinson attempted to take § 87(2)(b) arm several times but § 87(2)(b) moved it away from the detective. Det. Robinson eventually handcuffed § 87(2)(b) without incident by himself. Det. Robinson denied hitting § 87(2)(b) with a baton and stated he does not carry either a baton or an asp since he has a Taser. Det. Robinson did not use any force towards § 87(2)(b) apart from placing him in handcuffs and did not see PO Davis hit § 87(2)(b) with a baton either. After handcuffing § 87(2)(b) Det. Robinson told § 87(2)(b) to get into the ambulance again and § 87(2)(b) stated, “No, don’t lift me up. My foot is broken.” § 87(2)(b) did not specify what foot he was referring to. § 87(2)(b) was then placed on a stretcher and started cursing. He continued cursing at the hospital and was sedated. Det. Robinson did not prepare an AIDED report since the officers were called to assist EMTs and he did not believe he was required to prepare one in that case.

Although PO Davis had limited recollection of the incident, she was consistent with Det. Robinson in stating that they responded to assist the EMTs to remove § 87(2)(b) to the hospital since he was intoxicated [BR 08]. She did not recall observing any alcohol bottles near § 87(2)(b) nor did she recall why § 87(2)(b) had to be handcuffed. PO Davis did not recall any details about § 87(2)(b) handcuffing but noted that Det. Robinson did not use any force towards § 87(2)(b) during that time. PO Davis denied hitting § 87(2)(b) with her baton and confirmed that Det. Robinson was not assigned one. PO Davis did not recall giving Det. Robinson her baton. PO Davis did not observe physical injuries to § 87(2)(b) nor did he complain of any. PO Davis was consistent in describing § 87(2)(b) behavior after he was placed on the stretcher. PO Davis stated she did not prepare an AIDED in regards because she did not believe the situation warranted it. She noted that Det. Robinson did not prepare one either since he does not fill out paperwork in general.

An Ambulance Care Report prepared for § 87(2)(b) by the EMTs is largely consistent with their CCRB testimonies [PD 01]. It also notes that § 87(2)(b) was verbally abusive during assessment efforts and remained combative during transport. § 87(2)(b) medical records from § 87(2)(b) note that § 87(2)(b) was agitated, was cursing at and threatening medical staff upon arrival [PD 01]. He appeared to be severely intoxicated and required antipsychotic and sedative medication. § 87(2)(b) did not exhibit any clear signs of trauma. § 87(2)(b) was discharged at § 87(2)(b) on the following day appearing to be clinically sober and steady on his gait. § 87(2)(b) medical records from § 87(2)(b) from § 87(2)(b) note that he arrived at the emergency room via public transportation complaining that the police has beaten him up with nightsticks two days ago [BR 02]. § 87(2)(b) complained of pain to his right hand/wrist, right ankle and swelling. After having his right foot X-rayed, § 87(2)(b) was diagnosed with a closed nondisplaced fracture of the fifth metatarsal bone. A hard-sole shoe was placed on his foot and he was discharged two hours later.

According to NYPD Patrol Guide Procedure 216-01, upon arrival on the scene of the incident involving a sick or injured person (an AIDED), officers should render reasonable aid and request an ambulance if necessary [BR 13]. An officer should also prepare and AIDED report. If an officer responds to an AIDED case and finds that a person has been removed from the scene prior to his/her arrival, the officer should ascertain the location of the AIDED and obtain all necessary information to prepare an AIDED report.

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 11].
- Det. Robinson has been a member of service for 16 years and has been a subject in 16 other CCRB complaints and 40 allegations, of which three were substantiated:
 - 201801655 involved substantiated allegations of discourtesy, verbal sexual harassment and sexual humiliation against Det. Robinson. The Board recommended Formalized Training and the NYPD has not yet imposed discipline.
 - 200509415 involved allegations of physical force against Det. Robinson that were closed as unfounded.
 - 20704874 involved a physical force allegation against Det. Robinson that was closed as exonerated.
 - 201116020 involved a physical force allegation against Det. Robinson that was closed as unsubstantiated.
 - 201510364 involved a use of nonlethal restraining device against Det. Robinson that was closed as complainant uncooperative.
 - 201706161 involved a physical force allegation against Det. Robinson that was closed as complainant uncooperative.

- 201708775 involved hit against inanimate object and physical force allegations against Det. Robinson that were closed as exonerated.
- § 87(2)(g) [REDACTED]
- PO Davis has been a member of service for seven years and has been a subject in one additional CCRB complaint containing one allegation that was not substantiated.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 21, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint [BR 12].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 8

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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